

STATE OF INDIANA COUNTY OF VANDERBURGH

**IN THE VANDERBURGH SUPERIOR COURT 1 HON. DANIEL S. MURRIE,
SPECIAL JUDGE**

**ESTATE OF LEONARDO (“LEO”) ESLINGER, SERENA ESLINGER, JONAH
ESLINGER, KRISTI D. HELD, Individually, as Personal Representative of the Estate
of Leonardo Eslinger, and as Next Friend for Minor Plaintiffs, and SHERRI
ESLINGER,
Plaintiffs,**

v.

**JILLIAN N. KRATOCHVIL, and STOLL, KEENON, OGDEN, PLLC,
Defendants.**

Case No.: 82D01-2512-CT-008032

Related Case Nos.: 14D01-2603-CB-000248 14D01-2603-CB-000258 26S-SJ-00061

**OMNIBUS MOTION TO VACATE MAY 6, 2026 ORDERS AND RESTORE CASE
TO HEARING CALENDAR**

Plaintiffs, the Estate of Leonardo (“Leo”) Eslinger, Serena Eslinger, Jonah Eslinger, Kristi D. Held (Individually, as Personal Representative of the Estate, and as Next Friend for Minor Plaintiffs), and Sherri Eslinger (collectively, “Plaintiffs”), by counsel, respectfully move this Court to vacate its four (4) Orders issued *sua sponte* on May 6, 2026. Plaintiffs request that the Court restore this matter to the hearing calendar as previously ordered, and state as follows:

INTRODUCTION

On May 6, 2026, this Court issued a series of dispositive orders on critical pending motions, including Plaintiffs' Motion for Change of Venue, thirty (30) days before the scheduled evidentiary hearing set for June 5, 2026. These orders were entered without affording Plaintiffs their fundamental due process right to be heard, preempting their ability to file reply briefs and present evidence and oral argument. This action deprived Plaintiffs of a meaningful opportunity to confront Defendants' arguments regarding structural bias, fraud, and concealment.

This motion is brought pursuant to the Court's inherent power to reconsider and correct its interlocutory orders at any time before final judgment. Plaintiffs do not seek to relitigate the merits of the underlying motions at this juncture. Rather, Plaintiffs seek to remedy a clear procedural error and vindicate their right to a hearing, a right the Court itself had previously recognized by setting the June 5, 2026 hearing date. For the reasons set forth herein and in the accompanying memoranda, Plaintiffs request that the May 6, 2026 Orders be vacated in their entirety and that all pending motions be restored to the hearing calendar.

STATEMENT OF FACTS

1. On March 5, 2026, Plaintiffs filed their Verified Motion for Change of Venue from Vanderburgh County, alleging pervasive structural bias that renders a fair trial impossible in the forum.
2. On April 1, 2026, Plaintiffs filed their Motion for Expedited Discovery and Motion for Appointment of Counsel to address the complex issues of legal malpractice and fraud central to this case.
3. In response, Defendants filed a Motion for Protective Order on April 15, 2026, seeking to prevent discovery into critical areas of their conduct.
4. On April 16, 2026, the Court properly scheduled a comprehensive evidentiary hearing for June 5, 2026, to address all pending motions. This scheduling order implicitly

acknowledged that the issues raised, particularly regarding venue and the protective order, required factual development and oral argument.

5. On May 6, 2026, a full thirty (30) days prior to the scheduled hearing, the Court abruptly issued four separate orders *sua sponte*, without notice to the parties:
 - Order Denying Plaintiffs’ Motion for Change of Venue;
 - Order Denying Plaintiffs’ Motion for Expedited Discovery;
 - Order Denying Plaintiffs’ Motion for Appointment of Counsel; and
 - Order Granting Defendants’ Motion for Protective Order.
6. These orders were entered before the deadline for Plaintiffs to file reply briefs in support of their motions and in opposition to Defendants’ Motion for Protective Order.
7. The Court’s actions effectively canceled the June 5, 2026 hearing, thereby denying Plaintiffs their due process rights to present evidence, cross-examine witnesses, and make a full record on these critical, fact-sensitive, and potentially case-dispositive issues.

GROUND FOR RELIEF

The grounds for vacating the May 6, 2026 Orders are more fully detailed in Plaintiffs’ separately filed memoranda, which are incorporated herein by reference:

- **Memorandum A: In Support of Motion to Vacate Order Denying Change of Venue.** This memorandum details the structural bias and conflicts of interest that require a change of venue under Indiana Trial Rule 76 and controlling precedent.
- **Memorandum B: In Support of Motion to Vacate Order Granting Protective Order.** This memorandum establishes that the protective order was granted based on misrepresentations and improperly shields Defendants from discovery into their alleged fraud, concealment, and professional misconduct.

- **Memorandum C: In Support of Motion to Vacate Orders Denying Discovery and Counsel.** This memorandum explains how the denial of discovery and counsel prejudices Plaintiffs' ability to prosecute their complex legal malpractice claims and prevents them from fairly presenting their case.
- **Memorandum D: Regarding Preservation of Interlocutory Appeal Rights.** This memorandum outlines Plaintiffs' right to an interlocutory appeal of the Court's venue determination under Indiana Appellate Rule 14(A)(8) and requests certification for appeal of the remaining orders under Indiana Appellate Rule 14(B).

LEGAL STANDARD

A trial court possesses the inherent authority to review, modify, and vacate its interlocutory orders at any point before the entry of a final judgment. The Indiana Court of Appeals in *Metropolitan Dev. Com'n of Marion Cty. v. Newlon*, 297 N.E.2d 483, 485 (Ind. Ct. App. 1973), held, "A court has inherent power to control its own orders. It is therefore perfectly proper for a trial court to reconsider a previous order, and to vacate it, or make a modified or contrary order while the case is still *in fieri*." This principle was reaffirmed in *Stephens v. Irvin*, where the court stated, "A trial court has the inherent power to reconsider, vacate, or modify any previous order so long as the case has not proceeded to final judgment." 730 N.E.2d 1271, 1277 (Ind. Ct. App. 2000).

Furthermore, ruling on dispositive motions without a scheduled hearing violates a party's fundamental due process rights. In *Elson Ford, Jr. v. The Oaks Academy*, No. 18A-CT-00456, 2018 WL 3017320, at 4 (Ind. Ct. App. June 13, 2018), the court held that dismissing a complaint following a hearing for which a party did not receive notice constituted a violation of the party's right to due process. Here, the Court's sua sponte* cancellation of the June 5, 2026 hearing and issuance of adverse rulings had the same effect, denying Plaintiffs their right to be heard.

RELIEF REQUESTED

Plaintiffs respectfully request that the Court exercise its inherent authority to correct the procedural error that occurred on May 6, 2026. The appropriate remedy is to return the parties to the position they were in before the entry of the premature orders by vacating those orders and restoring the matter to the hearing calendar. This will provide all parties a full and fair opportunity to present their arguments and evidence as contemplated by the Court's own April 16, 2026 scheduling order.

PRESERVATION OF RIGHT TO INTERLOCUTORY APPEAL

Plaintiffs file this motion to permit the Court to correct a clear procedural error. However, Plaintiffs must act to preserve their appellate rights, which are subject to strict jurisdictional deadlines.

First, pursuant to Indiana Appellate Rule 14(A)(8), an order denying a motion for change of venue is appealable as a matter of right. *See Gulf Stream Coach, Inc. v. Cronin*, 903 N.E.2d 109, 111 (Ind. Ct. App. 2009); *City of Gary v. Majestic Star Casino, LLC*, 905 N.E.2d 1076, 1079 (Ind. Ct. App. 2009). The Notice of Appeal for such an order must be filed within thirty (30) days of the order, i.e., by June 5, 2026. This motion does not toll that deadline. While this motion is pending, Plaintiffs will be forced to file a protective Notice of Appeal to preserve their rights.

Second, pursuant to Indiana Appellate Rule 14(B), Plaintiffs respectfully request that, in the event the Court denies this Motion, it certify its May 6, 2026 Orders Granting the Protective Order and Denying Discovery for interlocutory appeal. These orders involve substantial questions of law—namely, the extent to which a party may be shielded from discovery related to allegations of fraud on the court and concealment of malpractice—the early determination of which will promote a more orderly disposition of the case. A ruling that

prevents Plaintiffs from discovering the core facts of their case is an issue for which an immediate appeal is the only adequate remedy.

This motion is subject to Indiana Trial Rule 53.4 and will be deemed denied if not ruled upon within five (5) days. *See Jackson v. Paris*, 598 N.E.2d 1106, 1108 (Ind. Ct. App. 1992). An immediate ruling is therefore necessary to provide clarity and prevent the unnecessary expenditure of judicial and party resources on a premature appeal.

PRAYER FOR RELIEF

WHEREFORE, Plaintiffs respectfully pray that this Court enter an Order:

- A. **GRANTING** this Omnibus Motion;
- B. **VACATING** its four (4) Orders entered on May 6, 2026;
- C. **RESTORING** all pending motions to the Court's calendar and setting them for an evidentiary hearing at the Court's earliest convenience;
- D. In the alternative, should the Court deny this Motion, **CERTIFYING** the May 6, 2026 Orders Granting a Protective Order and Denying Discovery for interlocutory appeal pursuant to Indiana Appellate Rule 14(B); and
- E. Granting all other relief just and proper in the premises.

Date: May 17, 2026

Respectfully submitted,

_____ [Counsel Name] [Attorney Number] [Firm Name]

[Address] [Phone Number] [Email Address] *Counsel for Plaintiffs*

CERTIFICATE OF SERVICE I hereby certify that on May 17, 2026, a copy of the foregoing was served upon all counsel of record via the Indiana E-Filing System.

_____ [Counsel Name]